

Court No. - 21

Case :- WRIT - C No. - 23378 of 2012

Petitioner :- Mahaveer Prasad And Others

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Anil Kumar Sharma

Respondent Counsel :- Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Mushaffey Ahmad,J.

Connect with Civil Misc. Writ Petition No. 11961 of 2012.

Sri Rajesh Tripathi, learned counsel for the respondents may file counter affidavit within 3 weeks. Rejoinder affidavit, if any, may be filed within a week t hereafter.

List this case on 9.7.2012.

For the reasons given in the interim order dated 27.3.2012, petitioner is also entitled for the interim order in the same terms.

The matter requires consideration.

As an interim measure, recovery of the impugned bill shall remain stayed provided the petitioner deposits the minimum fixed charges, which is applicable to rural area every months.

The petitioners will permit the respondents to install the meter , however, the question as to whether the petitioners would be liable to pay the metered charges, or lump sum fixed charges, shall be subject to the result of this writ petition.

Order Date :- 14.5.2012

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Court No. - 37

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Petitioner :- Mahaveer Prasad And Others

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Anil Kumar Sharma

Counsel for Respondent :- Rajesh Tripathi

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Shamim Ahmed, J.

Heard Shri Anil Kumar Sharma, learned counsel for the petitioners and Shri S.K. Tripathi holding brief of Shri Baleshwar Chaturvedi, learned counsel for the Electricity Department-respondents.

In similar controversy with regard to dispute of electricity bill this Court in the case of **Ram Autar Vs. U.P. Power Corporation Ltd. and others** in Writ-C No. 11961 of 2012 by order dated 23.10.2019 has directed the petitioner to appear before the Consumer Grievance Redressal Forum created under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

The writ petition is accordingly disposed of.

It is made clear that in case the petitioners approach the forum, their application will not be thrown out only on account of delay.

Order Date :- 26.2.2020

Sunil Kr. Gupta

(Shamim Ahmed, J.) (Abhinava Upadhyaya, J.)